

From the Court’s perspective, however, Harvest Inn had, by that point, already intentionally relinquished its right to compel Plaintiff to arbitrate. Moreover, the explanation ignores the fact that *Mr. Singh* was involved in several of the acts that evidence Harvest Inn’s intention to relinquish and abandon the right to arbitrate the dispute including the request for a jury trial and submission of jury fees and filing of the request that the Court enter a protective order in the matter.

Finally, the Court finds that Mr. Ortiz has also presented clear and convincing evidence that Harvest Inn knew of its contractual right to enforce Mr. Ortiz’ class action waiver and intentionally relinquished and/or abandoned it as well. The Court notes that the Belaire West Notice and third-party administrator are necessary only in class actions. Counsel’s active discussion and agreement on these topics are significant indicia of an intention to abandon that aspect of the agreement as well.

Based on the foregoing, the motion is DENIED.

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Bank of America N.A. v. Sydney L. Grant

25CV002709

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

TENTATIVE RULING: The motion is GRANTED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Bank of America, N.A. (“Plaintiff”) moves, pursuant to Code of Civil Procedure §§ 2023.010 *et seq.* and 2033.280,⁵ for an order that truth of all specified facts in the Request for Admissions, Set One, propounded by plaintiff Bank of America, N.A. on defendant Sydney L. Grant by mail on 03/23/2026, be deemed admitted.

“If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.” (§ 2033.280, subd. (b).) “The

⁵ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (§ 2033.280, subd. (c).)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Brian Langedyk at ¶¶ 2-3, Exh. 1.) As such, the Court orders that the genuineness of the documents and the truth of the matters specified in the RFAs are deemed admitted.

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In The Matter of Catherine Marie Byers

26CV000081

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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In The Matter of Alice Adele Anamosa

26CV000939

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.